

IN THE FIRST DISTRICT COURT OF APPEAL
STATE OF FLORIDA

CASE NO. 1D26-0728
Circuit Court Case 2025-CA-2469

CHRISTOPHER HANSON,

Appellant,

v.

THE FLORIDA BAR, et al.

Appellees.

ANSWER BRIEF OF APPELLEES, THE FLORIDA BAR, RICHARD D.
COURTEMANCHE JR., ALLIE F. HUSTON, AND ALICIA GANGI

On Appeal from the Second Judicial Circuit
in and for Leon County

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STATEMENT OF THE CASE AND FACTS

I. PERTINENT FACTS

A. Appellant's Bar Complaint Against Scott Paul Davis.

This matter stems from a complaint that Appellant Christopher Hanson filed with The Florida Bar against attorney Scott Paul Davis. (R: 78-102). Mr. Davis is the attorney for Mr. Hanson's wife in ongoing divorce proceedings in Hillsborough County. (R:19). In the complaint, Mr. Hanson makes allegations pertaining to Mr. Davis's "tactics" during the litigation including "filing motions that have no basis" such as "motions to appoint a guardian ad litem and compel a psychological evaluation" and "strategic delays in document production, including the failure to honor stipulated deadlines and the selective, tardy disclosure of financial records." (R: 79). The complaint alleges that Mr. Davis has an "intent to delay, obstruct, and conceal evidence at all costs including filing baseless and slanderous motions." (R: 84). The complaint also alleges that Mr. Davis's had "control over [Mr. Hanson's] attorneys throughout the case" causing each one to withdraw from representing Mr. Hanson. (R: 85). Mr. Hanson asserts in the Bar complaint that Mr. Davis's "litigation strategy" amounts to violations of Bar rules. (R: 81, 87).

Mr. Hanson's Bar complaint was reviewed by Appellee Allie Huston, a senior staff attorney for The Florida Bar. (R: 103). Ms. Huston found that the Bar has no jurisdiction and stated in her letter to Mr. Hanson dated February 24, 2025:

In addition to the submitted documentation, I also reviewed the underlying docket in Hillsborough County Case No. 2024-DR-1150. The matters upon which your allegations are premised present questions of law and involve a dispute over which a court has jurisdiction. In the event the proper tribunal enters a finding or order which supports your allegations concerning the attorney in this regard, you may resubmit your complaint along with a copy of such findings or order for consideration.

(R: 103). See Fla. Bar Standing Bd. Policy 15.75(d)(1).¹

The Bar complaint file was closed effective February 24, 2025 (R: 103), and Mr. Hanson requested the decision be reviewed. Thereafter, pursuant to Florida Bar Standing Board Policy 15.75(e), the allegations against Mr. Davis were reviewed by Shannel M. Schuyler, Director of Attorney Consumer Assistance Intake at The Florida Bar. (R: 640-642). Ms. Schuyler reviewed all of the submissions in the matter as well as the extensive litigation filed in

¹ The Standing Board Policies of The Florida Bar are the Bar's operational policies and are adopted by Bar's Board of Governors. They may be viewed at www.floridabar.org/rules/policies.

Hillsborough County Case No. 2024-DR-1150. (R: 640). In a letter dated July 16, 2025, Mr. Schuyler noted that the trial court had granted Mr. Hanson's motion to compel and that the court had directed him to file, and he had filed, appropriate motions concerning discovery. (R: 642). Ms. Schuyler stated:

After reviewing the transcripts of the hearings which are in the case docket and having carefully considered all of the information contained within the file, I have concluded that the decision of Bar Counsel to close this file was appropriate. There is insufficient evidence that the attorney has violated the Rules Regulating The Florida Bar warranting the imposition of discipline. Further, the matters have been addressed by the court in proper motion practice. The discipline system is not a parallel or alternative forum in which to seek relief.

(R: 642).

Again, Mr. Hanson disagreed with decision to close the file. Thereafter, and in accordance with Florida Bar Standing Board Policy 15.75(f), the matter was referred to Appellee Alicia Gangi, Chair of the Judicial Circuit Grievance Committee 13A. (R: 643). After review, by letter dated September 23, 2025, Ms. Gangi sustained the former decisions to close the file as proper and correct. (R: 643).

Mr. Hanson continued to express his displeasure with the handling of his complaint against Mr. Davis. (R: 50-103).

B. Public Records Request.

On November 10, 2025, Mr. Hanson filed a public records request with The Florida Bar requesting copies of all records related to his Bar complaint against Mr. Davis. (R: 50-51). On the same day, Appellee Richard Courtemanche, Deputy General Counsel for The Florida Bar, responded to Mr. Hanson and provided him with “the entire public record related to [the] request.” (R: 48-49).

After receiving the public record as requested, Mr. Hanson began expressing his unhappiness with the response to his public records request, questioning why the file did not include any rebuttal or response from Mr. Davis or any communications between the Bar and Mr. Davis, and demanding that such records be produced. (R: 45-47). Mr. Courtemanche responded on November 24, 2025:

You have been provided the entire public record under Rule 3-7.1(b). Also, the bar is not an investigative agency like law enforcement. Our investitive resources are limited. You need to have the court in the underlying litigation make an evidentiary finding that the attorney you complained about committed misconduct.

(R: 44).

Mr. Hanson accused the Bar of, among other things, “corrupt[ion]” and “insider protectionism” and continued to demand

the Bar's alleged communications to and from Mr. Davis in connection with the complaint under Rule Regulating the Florida Bar 3-7.1. (R: 39-41, 320-323). On December 15, 2025, Mr. Courtemanche again reiterated "you have been provided the entire public record under Rule 3-7.1(b)." (R: 320).

C. Other Grievances.

In addition to filing a Bar complaint against opposing counsel in his divorce proceedings, Mr. Hanson also filed a complaint with the Judicial Qualifications Commission ("JQC") against Judge Kelly Ayers, a judge in those proceedings. (R: 16-17, 223-226). Mr. Hanson also filed a complaint against Judge Ayers with the Chief Judge of the Thirteenth Judicial Circuit. (R: 93-99). Also, in addition to filing motions to disqualify Judge Ayers from his divorce case (R: 104-116), Mr. Hanson filed a motion to disqualify all judges in the Thirteenth Judicial Circuit from hearing his case. (R: 536-544). He also filed a lawsuit—a complaint for writ of mandamus and declaratory relief—against the Thirteenth Judicial Circuit Court, Judge Ayers and other judges, the Clerk of Court, and the Court Administrator. (R: 117-133). The lawsuit seeks to compel the production of judicial records related to "judicial bias, corruption and

misconduct in the underlying family law case.” (R: 118).

On November 24, 2025, Judge Ayers filed a Bar complaint against Mr. Hanson, alleging that he violated certain Bar rules by posting on the Internet a disparaging article (which he authored) about Judge Ayers, other judges, and certain attorneys. (R: 135-166). That grievance remains open and pending.

On November 26, 2025, Mr. Hanson published another article on the Internet, entitled “Foxes Guarding the Courthouse and the Perfect Storm to Bring Accountability to Systemic Corruption: Exposing Florida’s Judicial Corruption Through Unimpeachable Evidence and Unwavering Pursuit of Truth.” (R: 180-222). The article discusses his JQC complaint against Judge Ayers, his Bar complaint against Mr. Davis, and his motions to disqualify, and makes disparaging remarks about the judges and attorneys involved in the Hansons’ divorce proceedings. *Id.*

II. COURSE OF PROCEEDINGS IN THE LOWER TRIBUNAL

On December 17, 2025, Mr. Hanson filed a Verified Petition/Complaint for Writ of Mandamus, Declaratory Relief, and Attorney’s Fees and Costs (“Complaint”) against Appellees The Florida Bar, Richard D. Courtemanche, Allie Huston, and Alicia

Gangi (together the “Florida Bar Defendants”). The Complaint states that it seeks to compel the Florida Bar Defendants:

To comply with their clear legal duties under the Florida Constitution and the Rules Regulating The Florida Bar” 3-7.1 and 3-7.3, by providing engagement, transparency and access to public records related to Bar Complaint No. W015656-111025 against attorney Scott Paul Davis (RFA No. 25-6861), which among other relief requested, should be reopened for a proper investigation and discipline to deter further misconduct in the cases discussed herein, and for all future litigants in Florida.

(R: 12).

The Complaint also states that it “requests relief under Florida Rule of Judicial Administration 2.420(l) for expedited review of the denial of access to judicial branch records.” *Id.*

The Complaint is replete with allegations pertaining to Mr. Hanson’s unhappiness with his divorce proceedings, the Bar’s decision to close his Bar complaint against attorney Scott Paul Davis, as well as his unhappiness with the JQC’s handling of his complaint against Judge Ayers and the Bar’s handling of the Bar complaint filed against him by Judge Ayers:

- “These [public record] requests...relate to attorney misconduct and the Bar’s handling of a complaint against Scott Paul Davis.” (R: 15).
- “The facts surrounding the bar complaint against Davis

demonstrate Judicial bias and systemic corruption dominating the underlying family law case (24-CR-001150) and the JQC's handling of Petitioner's complaint on Judge Ayers." (R: 15-16).

- "The ministerial duties the Florida Bar shirked, necessitating this petition/complaint, relate to Davis's and Ayers' misconduct in concealing/suppressing clearly discoverable financial evidence at the core of the [divorce proceeding] parties' dispute." (R: 16).
- "Judge Ayers 'fixed' the underlying family law case (24-DR-001150) by repeatedly excusing Davis's misconduct while suppressing efforts to obtain financial discovery, the only reason for any litigation between the parties." (R: 16).
- "The initial misconduct involving Davis and then Ayers' refusal to address it triggered a massive cover-up that now encompasses the 13th Judicial Circuit (through withheld records and venue trapping), the Florida Bar (via non-investigation of Davis and the advancement of Ayers' retaliatory complaint), and the JQC (via summary dismissal of Petitioner's complaint against Ayers without inquiry)." (R: 17).
- "This systemic protectionism prioritizes insiders over public accountability"; [the Appendix contains] "collective evidence of systemic failures, retaliatory complaints, and concealment of core records[,] and "Ayers' retaliatory Bar complaint as evidence of abuse of process." (R: 17).
- "The only apparent motive for the refusal to engage and continuing concealment of materials exchanged with Davis from the partial production of documents (on November 10, 2025) is to cover for insiders who wish to avoid consequences for their misconduct." (R: 17).
- "The complaint was improperly dismissed without probable cause, exonerating Davis despite substantiated allegations.

To date, Davis has never disputed any of the specific facts alleged in the complaint despite many opportunities in pleadings, correspondence, and in open Court.” (R: 19).

- “This non-responsiveness mirrors the Bar’s pattern since February 2025, including failures under Rule 3-7.3(c) (preliminary investigation) and Rule 3-7.1(b) (public records – concealment of rebuttal materials and correspondence with Davis).” (R: 20).
- “The Bar’s handling contrasts sharply with its advancement of a vague, retaliatory complaint against Petitioner by Judge Kelly Ayers...requiring Petitioner’s formal response while potentially excusing Davis entirely.” (R: 20).
- “The Bar’s...refusal to investigate substantiated and unrefuted allegations against Attorney Scott Paul Davis parallels the retaliatory complaint advanced by Judge Kelly Ayers against Petitioner...and advanced by the Bar despite its vague and unsupported (even unnamed) allegations.” (R: 21-22).
- “At the same time, the Bar dismissed the Davis complaint without requiring Mr. Davis to offer any alternative explanation for the severe and intentional pattern of ethical violations outlined in Petitioner’s Bar complaint.” (R: 22).
- “This selective enforcement and use of the Bar to protect insiders and attack those who demand accountability violates due process and expands corruption in the judicial system.” (R: 22).
- “This disparity and the continuing refusals to comply with constitutionally mandated transparency confirms the institutional bias favoring judicial insiders over complainants warranting mandamus....” (R: 22).
- “The underlying family law misconduct ongoing for more

than a year exemplifies the harm to litigants that including judicial bias in case 24-DR-001150, further compounds these issues.” (R: 22).

Mr. Hanson requests a writ of mandamus to compel record production and to “reopen the Bar complaint for proper handling consistent with the facts and law described herein.” (R: 23). He also requests declaratory relief because “[t]his pattern – advancing a retaliatory complaint from Judge Ayers while dismissing substantiated allegations against Davis – demonstrates selective enforcement and institutional self-preservation.” (R: 26). He seeks a declaration that the Florida Bar Defendants’ “advancement of a retaliatory complaint against Petitioner while simultaneously ignoring substantiated allegations against Attorney Scott Paul Davis constitutes an abuse of process and violates Petitioner’s due process rights under the Florida and United States Constitutions.” (R: 27).

In his prayer for relief, Plaintiff demands a litany of explanations from the Florida Bar Defendants regarding the Bar’s decision not to prosecute his complaint against his wife’s divorce attorney and decision not to reopen the matter. (R: 31-34). Plaintiff also demands attorneys’ fees and costs. (R: 29-31).

The Florida Bar Defendants filed a motion to dismiss the

Complaint with prejudice. (R: 625-643). The Florida Bar Defendants argued that:

(1) the trial court lacks jurisdiction to review the Florida Bar Defendants' actions related to attorney discipline (R: 631-632);

(2) the Complaint fails to state a cause of action against the Florida Bar Defendants because the discipline of a Florida Bar member is solely within the discretion of the Bar (R: 632-634);

(3) the Complaint fails to state a cause of action because The Florida Bar responded to Mr. Hanson's public records request and could not produce documents that Mr. Hanson wrongly believes exist (R: 634-635); and

(4) the Florida Bar Defendants are entitled to absolute immunity in connection with attorney disciplinary functions (R: 635-638).

On February 13, 2026, the trial court entered an order granting the Florida Bar Defendants' motion to dismiss and entered a final judgment in their favor. (R: 769-770). The court held that (1) it did not have jurisdiction to review the Bar's decision to dismiss Mr. Hanson's Bar complaint against Mr. Davis; (2) the Bar and its employees are immune from suit in acts taken in their official capacity; and (3) the Complaint failed to state a cause of action for

all the reasons set forth in the motion to dismiss. (R: 769). The court found that any amendment would be futile. *Id.*

Mr. Hanson filed a motion for rehearing (R: 771-774), which was denied (R: 775). Mr. Hanson appealed. (R: 776).

SUMMARY OF ARGUMENT

Mr. Hanson brought this matter to challenge The Florida Bar's decision to close his Bar grievance against his wife's divorce attorney without bringing disciplinary proceedings. The trial court correctly granted the Florida Bar Defendant's motion to dismiss the Complaint with prejudice because pursuant to Florida law only the Florida Supreme Court has the authority to review the Bar's decision not to discipline an attorney. Further, a person has neither a right to compel the Bar to bring disciplinary proceedings, nor the standing to appeal the Bar's decision not to discipline an attorney. Moreover, the Bar, and its employees and agents, have absolute immunity in connection with attorney discipline functions where, as here, a plaintiff seeks findings that would have an adverse effect on them.

While Mr. Hanson argues that he was denied access to records related to his Bar complaint, the record shows that he was provided with the entire public record requested.

STANDARD OF REVIEW

The standard of review for the dismissal of a complaint is de novo. *Green v. Cottrell*, 204 So. 3d 22, 26 (Fla. 2016).

ARGUMENT

I. THE TRIAL COURT CORRECTLY FOUND THAT IT LACKS JURISDICTION TO REVIEW BAR ACTIONS RELATED TO ATTORNEY DISCIPLINE.

As demonstrated by the allegations contained in the Complaint, at its core this action is an attempt by Mr. Hanson to challenge the Bar's decision to dismiss his Bar grievance against his wife's divorce attorney. (*See, e.g.*, R: 15, 16, 17, 19, 20, 21, 22). However, only the Florida Supreme Court has authority to review the Florida Bar Defendants' actions related to attorney discipline.

The Florida Constitution provides in Article V, Section 15:

Attorneys; admission and discipline.—The supreme court shall have exclusive jurisdiction to regulate the admission of persons to the practice of law and the discipline of persons admitted.

Art. V, § 15, Fla. Const. The effect of Article V, Section 15 on circuit court jurisdiction is that the circuit courts “now have only such power as has been provided in [the Rules Regulating The Florida Bar].” *Pantori, Inc. v. Stephenson*, 384 So 2d 1357, 1358 (Fla. 5th

DCA 1980).

In adopting the Rules Regulating The Florida Bar, the Florida Supreme Court “establishe[d] the authority and responsibilities of The Florida Bar, an official arm of the court.” R. Regulating Fla. Bar, Ch. 1, Introduction. In this regard, the Court delegated concurrent jurisdiction to the Florida circuit courts and The Florida Bar to initiate and proceed at the evidentiary level with attorney disciplinary actions:

The jurisdiction of the circuit courts is concurrent with that of The Florida Bar under these Rules of Discipline. **The forum first asserting jurisdiction in a disciplinary matter retains jurisdiction to the exclusion of the other forum until the final determination of the cause.**

R. Regulating Fla. Bar 3-3.5 (emphasis added). The Court did not delegate to the circuit courts the authority to review decisions of The Florida Bar relating to grievance complaints.

In *Cole v. Owens*, 766 So. 2d 287 (Fla. 4th DCA 2000), the plaintiff filed a complaint against Florida Bar attorneys for their failure to refer a complaint against the plaintiff’s former attorney to the grievance committee and for rejecting a demand to reopen their investigation. The plaintiff sought a declaratory judgment to determine whether the procedures used by appellees violated his

constitutional rights. *Id.* at 288. The trial court dismissed the action without leave to amend, finding it did not have jurisdiction over the matter. *Id.* On appeal, the district court affirmed, finding that “[t]he Florida Supreme Court has exclusive subject matter jurisdiction to review bar grievance proceedings.”

Here, The Florida Bar and its employees/agents, including Appellees Huston and Gangi, reviewed and investigated Plaintiff’s Bar grievance pursuant to Bar procedures and determined that disciplinary proceedings were not appropriate. According to Florida law as discussed above, the only court with the authority to review such decision is the Florida Supreme Court. Thus, in accordance with established precedent, the trial court correctly dismissed the Complaint and found that any amendment of the Complaint would be futile.

II. THE TRIAL COURT CORRECTLY FOUND THAT THE COMPLAINT FAILS TO STATE A CAUSE OF ACTION AGAINST THE FLORIDA BAR DEFENDANTS FOR FAILURE TO BRING DISCIPLINARY PROCEEDINGS.

A. No Person Has the Right to Compel the Bar or its Employees or Agents to Bring Disciplinary Proceedings.

As set forth above, the core of Mr. Hanson’s claims against the

Florida Bar Defendants is that his Bar grievance against Mr. Davis, his wife's divorce attorney, did not result in disciplinary proceedings. Such claim fails to state a cause of action.

In *Tyson v. Fla. Bar*, 826 So. 2d 265 (Fla. 2002), the Florida Supreme Court reviewed a petition for a writ of mandamus commanding The Florida Bar to reopen its investigation into alleged prosecutorial misconduct by an assistant state attorney. The Court stated:

This Court routinely receives inquiries from individuals who are unhappy with the Bar's handling of their complaint against an attorney." Amendments to the Rules Regulating the Florida Bar, 763 So. 2d 1002, 1003 (Fla. 2000). The role of the complaining witness in a bar disciplinary proceeding, however, is somewhat analogous to that of the victim in a criminal proceeding and, like crime victims, complaining witnesses cannot demand that the prosecuting authority file criminal charges against a particular individual based on alleged criminal behavior....

Id. at 268.

The Court further noted that Bar disciplinary proceedings are not designed to vindicate the rights of private parties:

Disciplinary proceedings against attorneys are instituted in the public interest and to preserve the purity of the courts. No private rights except those of the accused attorney are involved.

Id. at 267 (quoting *Application of Harper*, 84 So. 2d 700, 702 (Fla.

1956)). The Court went on to find that “petitioner had no clear legal right to have the Bar proceed with disciplinary charges against the assistant state attorney and therefore is not entitled to the mandamus relief he seeks.” *Id.* at 268.

The principle enunciated in *Tyson* is codified in the Rules Regulating the Florida Bar:

Rights of the Complaining Witness. The complaining witness is not a party to the disciplinary proceeding...The complaining witness shall have no right to appeal.

R. Regulating Fla. Bar 3-7.4(i).

Therefore, pursuant to the pertinent authority, no private right of action exists in any person for the failure of the Bar or its agents and employees to discipline an attorney.

B. A Complainant Has No Standing to Appeal the Bar’s Decision to Not Discipline an Attorney.

Moreover, Mr. Hanson has no standing to appeal the Bar’s decision not to discipline Mr. Davis. *Cole*, 766 So. 2d at 288 (holding that appellant lacked standing to appeal the Bar’s decision to not discipline an attorney). Rule Regulating Fla. Bar 3-7.4(i) (complainant is not a party to the disciplinary proceeding and has no right to appeal the Bar’s decision).

In sum, the trial court correctly held that Mr. Hanson failed to state a cause of action against The Florida Bar Defendants for failure to bring disciplinary charges against Mr. Davis.

III. THE TRIAL COURT CORRECTLY FOUND THAT THE FLORIDA BAR DEFENDANTS HAVE ABSOLUTE IMMUNITY IN CONNECTION WITH ATTORNEY DISCIPLINE FUNCTIONS.

The Florida Bar is an official arm of the Florida Supreme Court for the regulation and discipline of attorneys, acting at all times under the supervision and control of that Court. See R. Regulating the Fla. Bar Ch. 1, Introduction; R. Regulating Fla. Bar 1-8.1, 2-3.1, 3-3.1, and 3-3.2. Courts have consistently recognized that The Florida Bar and its agents act as an official arm of the Florida Supreme Court and enjoy absolute immunity from suit in connection with attorney disciplinary functions. *E.g., Henry v. City of Mt. Dora*, 371 So. 3d 386, 390 (Fla. 5th DCA 2022) (where members of a state bar were acting as agents of the Florida Supreme Court, they enjoy immunity for actions taken during the course of their official duties); *Zavadil v. Fla. Bar*, 197 So. 3d 596, 596-97 (Fla. 4th DCA 2016) (“the Bar has absolute immunity for actions taken within the scope of its authority as an arm of the Florida Supreme Court in the matters of

the regulation of attorneys”); *Spano v. Hoffman*, 968 So. 2d 674, 674-75 (Fla. 4th DCA 2007) (employees of The Florida Bar acting according to their official duties in disciplinary matter were absolutely immune from suit); *Cole*, 766 So. 2d at 288 (authorized “agents” of the Bar have absolute immunity for their official actions in dismissing Bar grievance); *Kee v. Baily*, 634 So. 2d 654 (Fla. 3d DCA 1994) (“The Florida Bar and its employees act as an official arm of the Florida Supreme Court and in such capacity enjoy absolute immunity for actions taken within the scope of their duties”); *Mueller v. The Fla. Bar*, 390 So. 2d 449, 452-53 (Fla. 4th DCA 1980) (immunity for “the Bar and its agents” from malicious prosecution claims); *Henry v. Harkness*, 701 F. App’x 878, 880 (11th Cir. 2017) (“the Florida Bar Rules establish that officials acting in disciplinary proceedings are agents of the Florida Supreme Court; thus, they are entitled to absolute immunity”); *Carroll v. Gross*, 984 F.2d 392 (11th Cir. 1993) (defendants who were acting as agents of the Florida Supreme Court in attorney disciplinary proceeding were entitled to absolute immunity from lawsuit), *cert. denied*, 510 U.S. 893 (1993).

The immunity afforded to The Florida Bar is not a mere defense from liability, but immunity from suit:

[Absolute immunity is] based chiefly upon a recognition of the necessity that certain persons, because of their special position or status, should be as free as possible from fear that their actions in that position might have an adverse effect upon their own personal interests. To accomplish this, it is necessary for them to be protected not only from civil liability, but also from the danger of even an unsuccessful civil action.

Cassell v. India, 964 So. 2d 190, 194 (Fla. 4th DCA 2007) (citing *Fridovich v. Fridovich*, 598 So. 2d 65, 68 (Fla. 1992) (quoting Restatement (Second) of Torts § 584, at 243)).

The above-cited authority demonstrates that The Florida Bar and its agents and employees are immune from suits premised upon acts undertaken in an official capacity and in connection with official functions. Here, Mr. Hanson makes no specific factual allegations in the Complaint to indicate that any of the Florida Bar Defendants were acting outside the scope of their official duties pertaining to such allegations. In fact, the allegations are consistent with the performance of the official disciplinary functions of these agents of the Bar.

Mr. Hanson argues that absolute immunity is not applicable here because he does not bring claims against the Florida Bar Defendants involving tort liability or seeking money damages. Yet,

while he states that his action is for “declaratory relief” and “mandamus relief,” he seeks relief that goes beyond a writ of mandamus or a declaration of his rights under the law. See § 86.021, Fla. Stat. Mr. Hanson requests findings against The Florida Bar Defendants for alleged misdeeds such as “institutional self-preservation,” “systematic bias,” and “bad faith, including willful delays, strategic concealment of information/documents, and selective enforcement.” (R: 26-29). He seeks a declaration that the Florida Bar Defendants’ “advancement of a retaliatory complaint against Petitioner while simultaneously ignoring substantiated allegations against Attorney Scott Paul Davis constitutes an abuse of process and violates Petitioner’s due process rights under the Florida and United States Constitutions.” (R: 27).

He also seeks attorneys’ fees and costs “to deter future misconduct” on multiple grounds including based on “bad faith and unreasonable obstruction.” (R: 29-31).

Accordingly, the trial court correctly found that the Florida Bar Defendants are absolutely immune from this lawsuit that might have an adverse effect on them. Moreover, when parties have absolute immunity, the complaint against them cannot be amended to state a

cause of action. *Cole*, 766 So. 2d at 288. Therefore, the trial court correctly granted the Florida Bar’s motion to dismiss with prejudice and found that amendment of the Complaint would be futile.

IV. THE TRIAL COURT CORRECTLY FOUND THAT THE COMPLAINT FAILS TO STATE A CAUSE OF ACTION AGAINST THE FLORIDA BAR DEFENDANTS BECAUSE THE FLORIDA BAR RESPONDED TO MR. HANSON’S PUBLIC RECORDS REQUEST.

Mr. Hanson argues that he was denied access to records of The Florida Bar. Such argument is without basis. The record on appeal reflects that Mr. Hanson was provided with all records to which he is entitled.

Mr. Hanson requested copies of all records related to his Bar complaint against his wife’s divorce attorney, Mr. Davis. (R: 50-51). Appellee Courtemanche, the Bar’s Deputy General Counsel, responded by providing *the entire public record* related to this request. (R: 48-49, 44, 320).² Mr. Hanson is unhappy because the records provided do not contain communications between the Bar and Mr.

² The Florida Bar is part of the judicial branch of Florida, and therefore its records are governed by Florida Rule of General Practice & Judicial Administration 2.420, rather than Chapter 119, Florida Statutes. The term “public records” is used for the Court’s convenience.

Davis regarding Mr. Hanson's grievance. (R: 17, 19, 20, 21, 24, 25). However, the record before this Court shows that the grievance file does not contain such information.

As stated by Appellee Huston, who first reviewed Mr. Hanson's complaint, she reviewed the documentation submitted by Mr. Hanson and the underlying docket in the divorce proceedings. (R: 103). Shannell Schuler, the Bar's Director of Consumer Assistance Intake, next reviewed the complaint. (R: 640-642). She also reviewed all of the submissions in the matter as well as the extensive litigation file, including transcripts of the hearings, in the divorce proceedings. (R: 640). Appellee Alicia Gangi, Chair of the Judicial Circuit Grievance Committee 13A, also reviewed the file and sustained the complaint's dismissal. (R: 643).

Thus, as demonstrated by the communications with Mr. Hanson as referenced above, the review and investigation of his Bar grievance was based on (1) submissions made by Mr. Hanson, and (2) the circuit court file in the underlying divorce case. It was determined that the grievance presented questions of law and involved a dispute over which the family law court had jurisdiction, not the Bar. (R: 103). It was also determined that the matter had

been addressed by that court in proper motion practice. (R: 642). As explained to Mr. Hanson, “the discipline system is not a parallel or alternative forum in which to seek relief” in an ongoing court proceeding. *Id.* Accordingly, Mr. Hanson’s grievance file against Mr. Davis was closed without further investigation.

The determination by Bar counsel not to bring disciplinary proceedings against Mr. Davis is completely in accordance with the Rules Regulating The Florida Bar. R. Regulating Fla. Bar 3-7.3(a) (“Bar counsel may decline to pursue the inquiry if bar counsel determines that the facts, if proven, would not constitute a violation of the Rules Regulating The Florida Bar warranting the imposition of discipline.”). *See also* Standing Board Policy 15.75(d)(1) (“[a]fter review of the inquiry, bar counsel may . . . decide not to pursue the inquiry because there was no rule violation that justifies discipline or the bar has no jurisdiction”).

Because the review of Mr. Hanson’s grievance was limited to the submissions and court records, the grievance file did not contain any communications with Mr. Davis. Mr. Hanson even acknowledges the nonexistence of communications between the Bar and Mr. Davis in the Complaint: “the Bar dismissed the Davis complaint without

requiring Mr. Davis to offer any alternative explanation for the . . . violations outlined in Petitioner’s Bar complaint.” (R: 22).

Therefore, records related to communications between the Bar and Mr. Davis regarding Mr. Hanson’s grievance were not provided because they were not a part of the file.³ Pursuant to Florida law, a custodian of records is not required to produce a document that does not exist. *See, e.g., Mills v. State*, 684 So. 2d 801, 806 (Fla. 1996) (a public records enforcement action cannot be sustained for the refusal to allow inspection and copying of a document if there is no demonstration that such document exists); *Skeen v. D’Alessandro*, 681 So. 2d 712, 713 (Fla. 2d DCA 1995) (finding trial court correctly discharged petition for writ of mandamus for production of document because issuance of writ would be futile where record did not exist). Nor does Florida law require a public entity to create a document for the purpose of responding to a public records request. *See* 2002 Court Commentary to Fla. R. Gen. Prac. & Jud. Admin. 2.420 (“The

³ If the grievance file contained information pertaining to communications with Mr. Davis, the Bar would be obligated to provide it. *See* R. Regulating Fla. Bar 3-7.3(g); R. Regulating Fla. Bar 3-7.1(b).

custodian is required to provide access to or copies of records but is not required either to provide information from records or to create new records in response to a request.”); *Report of the Sup. Ct. Work Grp. On Pub. Records*, 825 So. 2d 889, 898 (Fla. 2002) (same).

Therefore, the record on appeal shows that the Florida Bar Defendants have not unlawfully withheld public records from Mr. Hanson. As a result, the trial court correctly found that Mr. Hanson has not stated a cause of action against them on this basis.

CONCLUSION

For the foregoing reasons, the Florida Bar Defendants request that this Court affirm the trial court’s Order.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I CERTIFY that on June 30, 2026, I electronically filed the foregoing with the Clerk of Court via the Florida E-Filing Portal, which shall cause a copy to be served via email to the following:

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CERTIFICATE OF COMPLIANCE

I certify this Answer Brief complies with the typeface and type style requirements of Florida Rules of Appellate Procedure 9.045(b) and 9.210(a)(2). This brief uses Bookman Old Style 14-point typeface and contains 5,182 words.

/s/ M. Hope Keating
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